



Maritime &
Coastguard
Agency

Guidance

MIN 728 (M+F) Upcoming SOLAS chapter V amendment- reporting loss of containers at sea

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Summary

This notice sets out the upcoming SOLAS chapter V (Regulation 31 and 32) amendments which will come into force in Jan 2026 about the reporting of container loss at sea.

1. Introduction/background

1.1 The International Maritime Organization (IMO) has introduced binding revisions to SOLAS Chapter V (Regulations 31 and 32). These updates establish a unified framework for reporting incidents involving freight containers lost at sea.

1.2 Under the new requirements, ship Masters must promptly report both the loss and any sightings of drifting containers. This ensures swift communication with nearby vessels, relevant coastal authorities, and the vessel's flag State. The primary objectives of these amendments are to enhance maritime safety, safeguard the marine environment, and improve the ability to track and recover lost cargo.

1.3 Merchant Shipping (Safety of Navigation) Regulations 2020 (S.I. 2020/0673) (the 2020 Regulations) transpose SOLAS Chapter V requirements into the UK law. The 2020 Regulations introduced an ambulatory reference to incorporate future amendments to Chapter V into UK law without the need for secondary legislation. However, due to the unique nature of Chapter V, and the way the 2020 Regulations were drafted to cater for this, it has been established that the ambulatory reference in the 2020 Regulations does not capture upcoming requirement to report loss or observation of containers (Danger Messages) in SOLAS Chapter V Regulation 31 and 32

by Resolution MSC.550(108), which will take effect internationally on 1 January 2026.

1.4 The review and recasting of the 2020 Regulations are currently underway and are expected to come into force by the end of 2026. Once in force, this will address the requirements of Resolution MSC.550(108) concerning Danger Messages. At that point, this MIN728 will be withdrawn.

2. Applicability of amendments

2.1 The regulations apply to any ship carrying one or more freight containers, or that observes containers lost at sea. The updated requirements will take effect from 1 January 2026.

3. Key Amendments

3.1 The following provisions have been introduced under SOLAS Chapter V through Resolution MSC.550(108).

4. Regulation V/31 – Danger Messages

4.1 The master of every ship involved in the loss of freight container(s), shall communicate the particulars of such an incident by appropriate means without delay and to the fullest extent possible to ships in the vicinity, to the nearest coastal State, and also to the flag State.

4.2 In the event of the ship being abandoned, or unable to report, the company, as defined in regulation IX/1.2, shall, to the fullest extent possible, shall assume the reporting obligations.

4.3 The flag State, once informed, shall report the incident to the IMO via GISIS (Global Integrated Shipping Information System).

4.4 The master of every ship that observes freight container(s) drifting at sea shall, without delay and to the fullest extent possible, communicate

the particulars by appropriate means to ships in the vicinity and to the nearest coastal State.

5. Regulation V/32 – Information Required in Danger Messages

5.1 Loss of freight container(s) from a ship: It is recognized that at the time of the initial reporting, not all of the information elements may be available. Any subsequent and/or additional information shall be reported by the master at the earliest opportunity after the initial reporting. The report shall include:

5.1.1 General information

- Type of report: Loss of freight container(s) from a ship
- Time (Universal Coordinated Time) and date
- Ship's identity (IMO number/name/call sign/MMSI)
- From: Master of the ship, or contact details of their representative reporting on master's behalf
- To: Nearest coastal State where the incident occurred and flag State
- The message number: In chronological order if other freight container loss messages are sent following the first one

At the earliest, safe and practicable opportunity, a thorough inspection shall be conducted. The number or estimated number of lost freight container(s) shall be verified. A message containing this verified number shall be marked as "final" and sent to the same recipients

5.1.2 Position reporting^[footnote 1]: Position in latitude and longitude, or true bearing and distance in nautical miles from a clearly identified landmark (where possible)

- Position of the ship when freight container(s) were lost; or
- If the position of the ship when the freight container(s) were lost is not known, the estimated position of the ship when the freight container(s) were lost; or
- If an estimated position of the ship when the freight container(s) were lost is not known or cannot be determined, the position of the ship upon discovery of the loss.

5.1.3 Total number or estimated number of freight container(s) lost, as appropriate:

5.1.4 Type of goods in freight container(s):

- Dangerous goods: Yes/No
- UN number (if known)

5.1.5 Description of freight container(s) lost as far as available and practicable:

.1 Dimension of freight container(s) (e.g. 20 foot);

.2 Type(s) of freight container(s) (e.g. reefer); and

.3 Number or estimated number of empty freight container(s).

5.1.6 The master may provide additional information, if available and practicable, for example but not limited to:

- Cargo description according to the dangerous goods manifest (if applicable)
- Description of any cargo spill
- Wind direction and speed
- Sea current direction and speed
- Estimated drift direction and speed of lost freight container(s)
- Sea state and wave height

5.2 Observation of freight container(s) drifting at sea

5.2.1 General information

- Type of report: Observation of freight container(s) drifting at sea
- Time (Universal Coordinated Time) and date
- Ship's identity (IMO number/name/call sign/MMSI)
- From: Master of the ship
- To: Nearest coastal State to the position of observation

5.2.2 Position reporting: Time (Universal Coordinated Time), date and position of the observed freight container(s) in latitude and longitude, or true bearing and distance in nautical miles from a clearly identified landmark (where possible)

5.2.3 Total number of freight container(s) observed

5.2.4 The master may provide additional information, if available and practicable, for example but not limited to:

- Dimension of freight container(s) (e.g. 20 foot)
- Type(s) of freight container(s) (e.g. reefer)
- Description of any cargo spill
- Wind direction and speed
- Sea current direction and speed
- Estimated drift direction and speed of observed freight container(s)
- Sea state and wave height

More information

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Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

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1. Where available, a system of mechanical, electronic and/or visual aids can be used, allowing near real-time reporting of the drop point of the freight container(s)



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